



Website: www.clausondisability.com Mail: P.O. Box 110205 Durham, NC 27709

Phone: 888-251-5551 Email: info@clausondisability.com Fax: 919-521-5544

Dear:

We have a hearing coming up in your case. I need you to **sign and return ASAP the three attached forms**. These 3 forms are:

1. **The Fee Agreement** with our Advocacy Group—which you have already signed when you hired us, and nothing has changed in its terms; it simply has our representatives' names, as well, so SSA does not mistakenly think there are different Advocacy Groups representing you.
2. The **1696**—simply, the SSA form appointing us as your representatives, so that we can represent you at your hearing.
3. The **75-day Waiver**. By law, you are entitled to 75 days' notice of your hearing date. That means, by default, if we have to reschedule your hearing, it *cannot* be less than 75 days from now *unless* you choose to waive that right (**which would allow SSA to reschedule your hearing sooner**). **If you want a hearing soon, please sign this form.**

To complete these forms, you ***must*** **sign and return** them—***SSA will not accept e-signatures at this time!***

Once you have signed the forms, you may return them to me either by:

- **Scanning and emailing** them to info@clausondisability.com AND/OR
- **Faxing** them to (919) 521-5544
- **Sending them back in the enclosed postage paid envelope.**

Sincere Regards,

CLAUSON DISABILITY, LLC

A handwritten signature in black ink that reads "Vaughn S. Clauson".

Vaughn S. Clauson
Representative

VSC/c

FEE CONTRACT

Client Name:

Client SSN:

I hereby employ **Clauson Disability, LLC** to represent me before the Social Security Administration in my Social Security Disability case, Supplemental Security Income (SSI) case, or both.

My representative and I understand that for a fee to be payable, the Social Security Administration (SSA) must approve any fee my representative charges or collects from me for services my representative provides in proceedings before SSA in connection with my claim(s) for benefits.

I agree that if SSA favorably decides my claim(s) at any stage through the first hearing before an Administrative Law Judge (ALJ), I will pay my representative a fee equal to the lesser of 25% of the past-due benefits resulting from my claim(s), or the dollar limit imposed under 42 U.S.C. § 406(a)(2)(A) at the time of the decision. If I receive both Social Security disability and SSI benefits, I understand that my total fee will not be more than 25% of all past-due benefits, or no more than the limit set by 42 U.S.C. § 406(a)(2)(A), if the limit applies. **No representative fee will be charged if we do not win.**

If the first ALJ decision after the date of this agreement is a denial and my representative agrees to appeal and I win my case later, my representative will ask SSA to approve a fee no greater than 25% of all back benefits awarded in my case. If the Social Security Administration or Federal law raises or lowers the maximum amount to be charged by a representative, that amount will apply, including amounts which may be approved by an Administrative Law Judge. If this case goes to Federal District Court, the fee maximum does not apply. I understand that the Social Security Administration will hold out 25% of past-due Social Security Disability and/or SSI benefits and pay my representative for this work.

In addition, if I win, I will pay my representatives back for the costs of getting medical records and copying my file.

As soon as I get any money from Social Security, I will let my representatives know and I will pay them their fee.

Date

Clauson Disability, LLC

By:  AND By: 
Vaughn S. Clauson, Member/Manager Arista Sibrey-Hughes, Associate Representative

Instructions for Completing Form SSA-1696

Keep a copy of this form for your records

DO NOT FILE Form SSA-1696 if you do not have a claim, you are not filing a claim with this form, or there is no other case or issue pending decision with us.

In this document, "you" means the claimant, beneficiary, auxiliary, or spouse. "We", "Us", and "SSA" means the Social Security Administration.

General Information About This Form

- You have the right to appoint a qualified representative of your choice to represent you on any claim or asserted right under any of our programs. For more information on who can qualify to be an appointed representative, when your representative's appointment begins or ends, payment of fees to appointed representative(s), and other helpful information, visit our website at www.ssa.gov/representation. To locate your local field office, you can visit our website at www.ssa.gov/locator or call us, toll-free, at 1-800-772-1213.
- You may also choose to be unrepresented. We handle your case in the same manner whether you are represented or unrepresented. You do not need to appoint someone who simply helps you through the process. For example, you do not need to appoint someone who helps you come to our office, reads to you from documents, or interprets for you if you speak another language. You only need to appoint someone if that person will be acting on your behalf or appearing before us on your behalf.
- You and your representative(s) must give us accurate information as quickly as possible. Providing misleading or false information on this form or on your application, or withholding or delaying giving us evidence, could lead to possible criminal charges or administrative sanctions against you and/or your representative.

Appointing a Representative

If you are using this form to appoint a representative, complete Sections 1, 3, and 4 and enter your Social Security number in the boxes provided at the top of each page after the first page. Your representative should complete Sections 2, 5, 6, and 7 and the Representative ID at the top of each page after the first page. Both you and your representative must sign the form in Section 8. Your representative or someone else can help you complete your sections of the form, but you must sign the form in Section 8. You or your representative must submit the completed form to us before we will recognize your representative. You can electronically upload it, mail, fax, or eFax it to us or file it in-person at your local field office. Do not file this form with your local State Disability Determination Services office. If you are appointing multiple representatives, use separate forms for each representative.

Section 1 - Reason for Submission and Claimant's Information

Complete all the information, including your Social Security number. If you are filing your claim on someone else's Social Security record, this person is the "number holder", and we need the number holder's information to process your claim. To assist us in processing this form, tell us why you are submitting it by checking all applicable boxes in the "Reason for Submission" section.

Section 2 - Representative's Information

Your representative must complete the information in this section.

Section 3 - Claimant's Principal Representative

If you have more than one representative, use this section to name the person you want to be your principal representative. We will make contact and send notices to this person. If you name a new person here, any principal representative you named before will no longer be your principal representative. Your prior principal representative is still your representative unless you revoke the appointment with a separate writing that you sign, date, and file with us.

Section 4 - Claim Type

In this section, check all types of claims or issues for which you are appointing this representative.

Section 5 - Representative's Status, Affiliations, and Certifications

- **Part A - Representative's Status, Disqualifications, or Suspensions** - Your representative must complete this section to let us know the representative's status as a professional.
- **Part B - Representative's Affiliation Information** - If your representative is seeking a fee and chooses to designate an affiliate (business, firm, or other organization) for this claim, the representative should complete this section and give us the Employer Identification Number (EIN) of the affiliate entity. If your representative does not want to designate an affiliate entity for this claim or does not qualify for or seek direct payment in this claim, they should check "No EIN".

Section 5 - Representative's Status, Affiliations, and Certifications - continued

- **Part C - Assignment of Direct Payment of Authorized Fee to an Entity** - If your representative wants us to pay directly to the entity identified as an affiliate in Part B any representative fee we authorize, the representative must check the entity and the "Assignment" box in this part of the section. We will send the appropriate tax forms to both the entity and the representative. For more information on Forms IRS 1099-MISC or -NEC and employer registration, visit our website at www.ssa.gov/representation.

If your representative wants to rescind (cancel) their prior assignment and make a new assignment to a different entity, they must provide the information for the new entity in Part B of this section and check the *Assignment* box in this part of the section.

If your representative wants to rescind (cancel) their prior assignment to an entity and receive direct payment without assigning to a new entity, they must check the *Rescission* box in this part of the section.

- **Part D - Representative's Certifications** - Your representative must also certify the accuracy of all statements in this section.

Section 6 - Fee Arrangement

This section reflects you and your representative's agreement on payment of a fee, waiver of direct payment of a fee, or waiver of a fee. Generally, to charge a fee for services, your representative must get our approval. Your representative may waive their right to charge you a fee or tell us that a third-party entity (business, government agency, or organization) will pay the fee. In these situations, the third party must pay out of its own funds the fee and any expenses, and you and any auxiliary beneficiaries (e.g., children or spouse) must be free of any responsibility to pay any fees or expenses.

Section 7 - Other Claimants

If auxiliary claimants, such as your children or spouse, have not appointed their own representative(s), list their names and Social Security numbers in this section.

Section 8 - Signatures

If you are appointing a new representative, both you and your representative must sign the form in this section.

If you or your representative are submitting this form to update information relating to your existing appointment of this representative:

- You must sign this form if you are updating the information in Section 3.
- Your representative must sign this form if updating the information in Section 5.
- Both you and your representative must sign this form if updating the information in Sections 4, 6, or 7.

Privacy Act Statement
Collection and Use of Personal Information

Sections 206 and 1631(d) of the Social Security Act, as amended, allow us to collect your information, which we will use to verify the appointment of your representative and their acceptance of the appointment. Providing this information is voluntary, but not providing all or part of the information may prevent us from assisting you with the request. As law permits, we may use and share the information you submit, including with a congressional office, Federal, State, and local agencies, and others, as outlined in the routine uses within System of Records Notices (SORN) 60-0089, 60-0320, and 60-0325; available at www.ssa.gov/privacy. The information you submit may also be used in computer matching programs to establish or verify eligibility for Federal benefit programs and to recoup debts under these programs.

Paperwork Reduction Act Statement

This information collection meets the clearance requirements of 44 U.S.C. §3507, as amended by Section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget control number. We estimate that it will take about 30 minutes to read the instructions, gather the facts, and answer the questions. You may send us your comments on our estimated completion time to **SSA, 6401 Security Blvd., Baltimore, MD 21235-6401**. Send only comments relating to our time estimate to this address, not the completed form.

References

- 18 U.S.C. §§ 203, 205, and 207; 42 U.S.C. §§ 406 and 1383(d)(2).
- 26 U.S.C. §§ 6041 and 6045(f) and 20 CFR §§ 404.1700 et. seq. and 416.1500 et. seq.

Claimant's Appointment of a Representative

Section 1 - Reason for Submission and Claimant's Information

Reason for Submission

Check the box indicating your reason for submitting this form. If you or your representative are submitting this form to update information provided in your submission, please check the "Update" box and check the box(es) specifying the information you or your representative are updating.

- ☒ **Appoint a new representative**
- ☐ **Update information you previously submitted (Specify below by checking all applicable boxes)**

☐ Claimant's Principal Representative (Section 3)
☐ Claim Type (Section 4)
☐ Representative's Status, Disqualifications or Suspensions (Section 5, Part A)
☐ Representative's Affiliation Information (Section 5, Part B)
☐ Assignment of Direct Payment of Authorized Fee to an Entity (Section 5, Part C)
☐ Fee Arrangement (Section 6)
☐ Other Claimants (Section 7)

Claimant's Information

First Name	Initial	Last Name

Claimant's Social Security Number

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Number Holder's Information *(Complete only when applicable)*

My claim is based on another person's work or earnings (e.g., spouse, parent). This person's information is different from mine.

Number Holder's Social Security Number

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First Name	Initial	Last Name

Section 2 - Representative's Information

All representatives must register and receive a Representative Identification (Rep ID). For more information about registration visit us on-line at www.ssa.gov/ar, contact us at 1-800-772-1213 (TTY 1-800-325-0778) or visit your local Social Security office. If your representative wishes to update their registration information, they must do so using Form SSA-1699 *Representative Registration*.

First Name	Initial	Last Name
Arista	J	Sibrey-Hughes

Registered Representative Rep ID

R	7	3	7	L	C	V	K	Y	D
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Claimant's Social Security Number

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Representative's Rep ID

R	7	3	7	L	C	V	K	Y	D
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Section 3 - Claimant's Principal Representative *(Complete only when applicable)*

I have appointed more than one representative. The person named below is my principal representative. I ask SSA to make contacts or send notices to this person. Any principal representative I named before is no longer my principal representative but is still one of my representatives unless I have filed a separate writing revoking their appointment.

Name: Vaughn S. Clauson**Section 4 - Claim Type**

I appoint the individual named in Section 2 to act as my representative in connection with my claim(s) or asserted right(s) under Title II (RSDI), Title XVI (SSI), Title XVIII (Medicare Coverage), and Title VIII (SVB) of the Social Security Act, as presently amended, specifically for the issues identified below: *(Check all that apply)*

- ☒ Claim/Appeal for Title II Disability Benefits
- ☒ Claim/Appeal for Title XVI Disability Benefits
- ☐ Claim/Appeal for Title XVI Benefits
- ☐ Claim/Appeal for Retirement Benefits
- ☐ Claim/Appeal for Title XVIII (Medicare), VIII (Special Veteran's Benefits)
- ☐ Continuing Disability Review (CDR)
- ☐ Post-Entitlement Issue (A new issue you raise after eligibility for other benefits)

(E.g., benefit amount, representative payee, suspension, termination, overpayment.)

Section 5 - Representative's Status, Affiliations, and Certifications**Part A - Representative's Status, Disqualifications or Suspensions**

(Representatives must always keep this information current)

- ☒ I am an attorney *(SSA rules state that a claimant may appoint an attorney in good standing who has the right to practice law before a court of a State, Territory, District, or island possession of the United States, or before the Supreme Court or a lower Federal court of the United States.)*
- ☐ I am a non-attorney eligible for direct payment *(SSA rules require that non-attorneys meet certain criteria to qualify for direct payment. See our website at www.ssa.gov/representation for the criteria).*
- ☐ I am a non-attorney not eligible for direct payment.

I am now or have previously been *(check all that apply):*

- ☐ Disbarred or suspended from a court or bar to which I was previously admitted to practice law.

If selected, explain: _____

- ☐ Disqualified from participating in or appearing before a Federal program or agency.

If selected, explain: _____

- ☐ Removed from practice or has/had any or all licenses suspended by a professional licensing authority or agency.

If selected, explain: _____

Claimant's Social Security Number

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Representative's Rep ID

R	7	3	7	L	C	V	K	Y	D
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Part B - Representative's Affiliation Information

If you want to designate an affiliate (business, firm, or other organization) for this claim, provide the entity's name and Employer Identification Number (EIN) here. This number is not your Social Security number (SSN). This number is the entity's tax identification number. **To designate an affiliate entity for this claim, you must have already submitted to us a Form SSA-1699 that identifies this entity as an affiliate.** (If you do not want to designate an affiliate entity for this claim, or do not qualify for or seek direct payment, mark no EIN.)

EIN

8	4	-	2	5	7	9	5	1	6
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☐ No EIN

Entity's Name (Enter the full name of the business, firm, or organization with which you want to be affiliated while representing this claim)

Clauson Disability, LLC

Part C - Assignment of Direct Payment of Authorized Fee to an Entity

(Complete only when applicable)

Check the *Assignment* box below if you want to assign direct payment of your fee to the entity you identified above in Part B. If you previously assigned direct payment to another entity, an assignment to a new entity in Part B also constitutes a rescission of the prior assignment. Check only the *Rescission* box below if you want to rescind your prior assignment and receive direct payment with no assignment to an entity.

- ☒ **Assignment** - I, the representative whose name appears in Section 2 and whose signature appears in Section 8, request any fee authorized to me in this claim be directly paid to the entity identified above in Part B. I understand that the entity to which I assign direct payment of my fee must be registered prior to this assignment. I also understand that I can rescind this assignment only prior to the date SSA notifies the claimant of the first favorable determination or decision. If I previously assigned direct payment to another entity, this assignment also constitutes a rescission of the prior assignment.
- ☐ **Rescission of prior assignment** - I, the representative whose name appears in Section 2 and whose signature appears in Section 8, rescind my prior assignment of direct payment of my authorized fee.

Part D - Representative's Certifications

I accept this appointment and certify the following:

- I understand and agree that I will comply with the applicable policy and SSA rules on the representation of parties, including the *Rules of conduct and standards of responsibility for representatives* (20 CFR404.1740-404.1799 and 416.1540-416.1599); I will not charge, collect, or retain a fee for representational services that SSA has not approved or that is more than SSA approved unless a regulatory exclusion applies.
- I understand that if I fail to comply with any of applicable policy and SSA rules I may be suspended or disqualified from acting as a representative before SSA.
- I will not disclose any information to any unauthorized party without the claimant's specific written consent.
- I am not currently suspended or disqualified from practicing before the SSA.
- I am not prohibited from representing the claimant as a current or former officer or employee of the United States.
- I accept appointment as the representative for the claimant named in Section 1 of this form in connection with the claims and asserted rights described in Section 4 of this form.
- I agree that a copy of this signed form SSA-1696 will have the same force and effect as the original.
- I declare under penalty of perjury that I have examined all the information on this form and on all accompanying statements or forms, including any information, attestations and certifications provided to SSA in registration, and that they are all currently true and correct to the best of my knowledge.

I CERTIFY TO ALL OF THE ABOVE

AJSH

(Representative's Initials)

Claimant's Social Security Number

Representative's Rep ID

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Section 6 - Fee Arrangement *(Representative Only)*

Check one box below. If the representative is eligible for direct payment and this section is left unchecked, we will assume the representative will seek direct payment of a fee, until we receive a written waiver.

- ☒ **I will request a fee and direct payment of this fee.** Select this box if you are eligible for direct payment and want us to withhold a portion of the past-due benefits to directly pay the fee we may authorize. *(We must authorize the fee.)*
- ☐ **I will request a fee but not direct payment.** Select this box if you are not eligible for direct payment from the past-due benefits, or if you do not want direct payment. You are responsible for collecting any fee we may authorize on your own. *(We must authorize the fee.)*
- ☐ **I waive the right to receive a fee from the claimant, any auxiliary beneficiaries or any other individual, but a third-party entity will pay my fee.** Select this box if you certify that an entity, or a Federal, state, county, or city government agency will pay the fee and any expenses from its funds. The claimant, auxiliary beneficiaries, or other individuals must not be liable for the fee, directly or indirectly, in whole or in part, or any expenses. *(We do not need to authorize the fee if all regulatory conditions apply.)*
- ☐ **I waive the right to a fee.**

Section 7 - Other Claimants

List below any auxiliary claimants, such as a child or spouse of the claimant or number holder, who have not appointed their own representative.

Social Security Number

Name

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Section 8 - Signatures

Both you and your representative must sign this form if you are appointing a new representative. If you or your representative are submitting this form to update information relating to your existing appointment of this representative:

- You must sign this form if you are updating the information in Section 3.
- Your representative must sign this form if updating the information in Section 5.
- Both you and your representative must sign this form if updating the information in Sections 4, 6, or 7.

Representative's Signature		Date
Claimant's Signature		Date

SOCIAL SECURITY ADMINISTRATION
Office of Disability Adjudication and Review

IN THE CASE OF

CLAIM FOR

(Claimant)

All claims under current pending hearing review,
including but not limited to: TITLE 2 and/or TITLE 16.

(Wage Earner)

(Social Security Number)

WAIVER OF TIMELY WRITTEN NOTICE OF HEARING

Under 20 CFR 405.315, I am entitled to a 75 day written notice of the hearing on my case.
Having been fully advised of such right, I hereby waive the 75 day advance notice requirement.

(Signature)

(Street Address)

(City, State, and Zip Code)

(Area Code and Telephone Number)

Date: _____

COVID-19 Telephone Hearing Agreement Form

Claimant's Name:

Social Security Number:

Wage Earner:

Representative's Name:

Due to the coronavirus 2019 (COVID-19) national public health emergency, we are conducting hearings only by telephone at this time. We will not conduct the hearing by telephone unless the claimant (hereinafter "you") voluntarily agrees to appear in that manner. If you, the claimant, agree to appear at your hearing by telephone, the administrative law judge (ALJ) assigned to your case will conduct the hearing from his or her personal residence.

Please check one of the boxes below to tell us whether you voluntarily agree to appear at your hearing by telephone. If you agree to appear by telephone, please be sure to provide the telephone number where we can reach you at the time of your hearing. If you do not agree to appear by telephone, we will wait to schedule your hearing until we resume standard operations and can schedule you to appear at a hearing by video teleconferencing or in person, as appropriate. If we have already scheduled your hearing and you do not agree to appear by telephone, we will postpone your hearing.

☐ **I agree to a telephone hearing. On the day of the hearing, I can be contacted at:**

My contact number:_____

My representative's contact number:_____

☐ **I do not agree to a telephone hearing. I understand that by selecting this option, my hearing will be delayed.**

If your contact information changes or if you have questions, please call the Hearing Office at the telephone number on the COVID-19 Public Health Emergency Hearing Changes notice associated with this request.

Additional Comments:

[] I am the claimant whose name appears above, and the selection on this form accurately represents my voluntary determinations.

Claimant Signature:

Date:

---- Or ----

[] I represent the claimant whose name appears above and who presently is unable to sign this form due to COVID-19 precautions. As the authorized representative, I have consulted with the claimant, and the selection on this form accurately represents his or her voluntary determinations.

Representative Signature:



Date:

Privacy Act Statement
Collection and Use of Personal Information

Sections 205(a) and 1631(d)(1) of the Social Security Act, as amended, allow us to collect this information. Furnishing us this information is voluntary. However, failing to provide all or part of the information may prevent an accurate and timely decision on any claim filed.

We will use the information to schedule your hearing. We may also share your information for the following purposes, called routine uses:

- To applicants, claimants, prospective applicants or claimants, other than the data subject, their authorized representatives or representative payees to the extent necessary to pursue Social Security claims and to representative payees when the information pertains to individuals for whom they serve as representative payees, for the purpose of assisting SSA in administering its representative payment responsibilities under the Act and assisting the representative payees in performing their duties as payees, including receiving and accounting for benefits for individuals for whom they serve as payees; and
- To contractors and other Federal agencies, as necessary, for the purpose of assisting SSA in the efficient administration of its programs. We contemplate disclosing information under this routine use only in situations in which SSA may enter a contractual or similar agreement with a third party to assist in accomplishing an agency function relating to this system of records.

In addition, we may share this information in accordance with the Privacy Act and other Federal laws. For example, where authorized, we may use and disclose this information in computer matching programs, in which our records are compared with other records to establish or verify a person's eligibility for Federal benefit programs and for repayment of incorrect or delinquent debts under these programs.

A list of additional routine uses is available in our Privacy Act System of Records Notice (SORN) 60-0320, entitled Electronic Disability Claim File, as published in the Federal Register (FR) on December 22, 2003, at 68 FR 71210. Additional information, and a full listing of all of our SORNs, is available on our website at www.ssa.gov/privacy/.

Paperwork Reduction Act Statement - This information collection meets the requirements of 44 U.S.C. § 3507, as amended by section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget control number. We estimate that it will take about 10 minutes to read the instructions, gather the facts, and answer the questions. *You may send comments regarding this burden estimate or any other aspect of this collection, including suggestions for reducing this burden to: SSA, 6401 Security Blvd, Baltimore, MD 21235-6401. Send only comments relating to our time estimate to this address, not the completed form.*